

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:

-----X
MAURICE PHILLIPS,

Plaintiff(s),

SUMMONS

-against-

Plaintiff resides at:
334 Lefferts Avenue, Apt. 1B
Brooklyn, New York 11225

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER MIGUEL VANBRAKLE
SHIELD # 28743 OF THE 67TH PRECINCT AND JOHN
AND JANE DOE POLICE OFFICERS OF
THE 67TH PRECINCT,

Defendant(s),
-----X

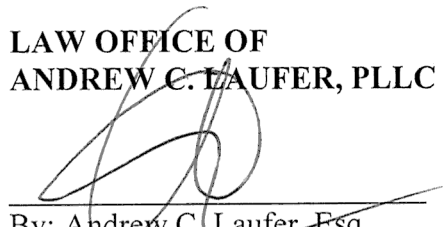
To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your Answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorney within 20 days after service of this Summons or within 30 days after the service is complete if this Summons is not personally delivered to you within the state of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of the venue designated is the place of incident.

Dated: New York, New York
December 6, 2018

**LAW OFFICE OF
ANDREW C. LAUFER, PLLC**


By: Andrew C. Laufer, Esq.,
Attorney for Plaintiffs
255 W 36th Street, Suite 1104
New York, New York 10018
(212)422-1020

DEFENDANT'S ADDRESS

THE CITY OF NEW YORK
100 Church Street, 4th Floor
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT
c/o CITY OF NEW YORK
100 Church Street, 4th Floor
New York, New York 10007

POLICE OFFICER MIGUEL VANBRAKLE
SHIELD # 28743 OF THE 67TH PRECINCT
2820 Snyder Avenue
Brooklyn, NY 11226

JOHN AND JANE DOE POLICE OFFICERS
OF THE 67TH PRECINCT
2820 Snyder Avenue
Brooklyn, NY 11226

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:

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MAURICE PHILLIPS,

Plaintiff(s),

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER MIGUEL VANBRAKLE
SHIELD # 28743 OF THE 67TH PRECINCT AND JOHN
AND JANE DOE POLICE OFFICERS OF
THE 67TH PRECINCT,

Defendant(s),

-----X

Plaintiff, by and through his attorney, Law Office of Andrew C. Laufer, PLLC complaining of the Defendants herein, upon information and belief, respectfully show to this Court, and allege as follows:

PRELIMINARY STATEMENT

1. That at all times hereinafter mentioned, the Plaintiff was a resident of the County of Bronx, City and State of New York.
2. That at all times hereinafter mentioned Defendant, THE CITY OF NEW YORK was and is a municipal corporation, duly organized and existing under by virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned, New York City POLICE DEPARTMENT was and is a municipal corporation, duly organized and existing under by virtue of the laws of the State of New York.
4. That at all times hereinafter mentioned Defendants, POLICE OFFICER MIGUEL VANBRAKLE SHIELD # 28743 OF THE 67TH PRECINCT AND JOHN AND JANE POLICE OFFICERS OF THE 67TH PRECINCT, were and still are employed with the NEW YORK CITY POLICE DEPARTMENT.

5. That prior to the institution of this action, a Notice of Claim was duly served upon and filed with the CITY OF NEW YORK on behalf of Plaintiff.

6. That a hearing was held on November 7, 2018 by the CITY OF NEW YORK pursuant to Municipal Law 50-h.

7. That at all time herein mentioned, POLICE OFFICER MIGUEL VANBRAKLE SHIELD # 28743 OF THE 67TH PRECINCT AND JOHN AND JANE DOE POLICE OFFICERS OF THE 67TH PRECINCT, were acting within the scope and course of their employment with the New York Police Department, and under color of State Law.

8. That at all times herein mentioned, POLICE OFFICER MIGUEL VANBRAKLE SHIELD # 28743 OF THE 67TH PRECINCT AND JOHN AND JANE DOE POLICE OFFICERS OF THE 67TH PRECINCT were acting in their individual and official capacity as employees of Defendants THE CITY OF NEW YORK (CITY) and NEW YORK CITY POLICE DEPARTMENT (NYPD).

9. That all the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules 1602 with respect to joint and several liability.

STATEMENT OF FACTS AS TO ALL CAUSES OF ACTION

10. On or about March 24, 2018, at approximately 1:08 a.m., Plaintiff MAURICE PHILLIPS was lawfully at 243 East 51st Street, in the County of Kings, State of New York.

11. He was attending a party when the Defendants appeared and began to arrest a number of the party goers, including the plaintiff.

12. At the time the Plaintiff was taken into custody, he was assaulted, battered, and victimized by Defendants who engaged in excessive force by punching him in his face, left eye, and head while cuffed and then transported to the 67th precinct.

13. At the 67th precinct, the plaintiff's injuries to his face and eyes were so readily apparent that he was taken via ambulance to Kings County Hospital for treatment.

14. Thereafter, he was taken back to the precinct and then to central booking where he was processed.

15. The individual Defendants, POLICE OFFICER MIGUEL VANBRAKLE SHIELD # 28743 OF THE 67TH PRECINCT AND JOHN AND JANE DOE POLICE OFFICERS OF THE 67TH PRECINCT, under color of state law, subjected Plaintiffs to the foregoing acts and omissions without due process of the law, thereby depriving Plaintiffs of their rights, privileges and immunities secured by the First, Fourth and Fourteenth Amendments to the United States Constitution, including without limitation, deprivation of the following constitutional rights: (a) freedom from unreasonable searches and seizure of their person, including the excessive use of force; and (b) the enjoyment of equal protection, privileges and immunities under the laws.

FIRST CAUSE OF ACTION FOR VIOLATION OF PLAINTIFFS' RIGHTS UNDER THE
FOURTH, FIFTH AND FOURTEENTH AMENDMENTS TO THE UNITED STATES
CONSTITUTION AND NEW YORK STATE LAW PREDICATED UPON THE USE OF
EXCESSIVE FORCE UPON PLAINTIFFS

16. Plaintiffs repeat and reallege each and every allegation contained herein as if fully set forth at length herein.

17. That on or about March 24, 2018, at approximately 1:08 am, Defendants, jointly and severally in their capacity as police officers, wrongfully entered, stopped, handcuffed, assaulted and battered the Plaintiff about his person, causing him physical pain and mental suffering. At no time did Defendants have legal cause to assault, batter, victimize or engage in excessive use of force in their apprehension of Plaintiff, nor did Plaintiff consent to this illegal touching nor was or privileged by law.

18. As a result of the aforementioned actions, Defendants deprived Plaintiff of the right to be free from the use of excessive force secured by the Constitution and Laws of the United States of America and the Fourth and Fourteenth Amendments.

19. As a result of the aforementioned actions, Defendants deprived Plaintiff of his right against the use of excessive force against his person secured by the Constitution and Laws of the United States of America and the Fifth and Fourteenth Amendments.

20. The aforementioned acts of Defendants were intentional, willful and malicious and performed with a reckless disregard for and deliberate indifference to Plaintiff's rights.

21. That by reason of the assault, battering, and victimization of Plaintiff, Plaintiff was subjected to great indignities, humiliation and ridicule in being so detained, and was greatly injured in their credit and circumstances and was prevented and hindered from performing and transacting his necessary affairs and were caused to suffer much pain in both mind and body, and to sustain economic loss, and was otherwise damaged.

22. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. §§ 1981, 1983, 1985, 1986 and under New York State Law.

SECOND CAUSE OF ACTION AGAINST DEFENDANT CITY
MONELL CLAIM PURSUANT TO 42 U.S.C § 1983 AND RESPONDEAT SUPERIOR

23. Plaintiffs repeat and reallege each and every allegation contained herein as if fully set forth at length herein.

24. All of the acts and omissions by the individual Defendants, described above were carried out pursuant to overlapping policies and practices of the CITY which were in existence at the time of the conduct alleged herein and were engaged in with the full knowledge, consent and cooperation and under the supervisory authority of Defendants CITY and the NEW YORK CITY POLICE DEPARTMENT (NYPD).

25. Defendants CITY and NYPD, by their policy-making agents, servants and employees, authorized sanctioned and/or ratified the individual Defendants' wrongful acts and/or failed to prevent or stop those acts and/or allowed those acts to continue.

26. Defendants assaulted, battered, and victimized Plaintiff in the absence of any evidence of the necessity to use force, notwithstanding their knowledge that said excessive use of force would jeopardize Plaintiff's liberty, well-being, safety and constitutional rights.

27. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

28. On or about March 24, 2018, Defendants did stop, seize, search, assault and commit a battery and grab the person of the Plaintiff without probable cause to do so. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner.

29. The Plaintiff was assaulted, battered, victimized without the Defendants' possessing probable cause to do so.

30. The above actions of Defendants resulted in the Plaintiff being deprived of the following rights under the United States Constitution.

- a. Freedom from assault to his person.
- b. Freedom from battery to his person.
- c. Freedom from the use of excessive force during the arrest process.

31. The Defendants subjected Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights.

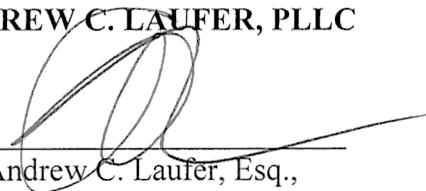
32. Defendant CITY has grossly failed to train and adequately supervise its police officers in the fundamental law of use of force, that its police officers should only use reasonable force to effectuate an arrest.

33. The direct and proximate results of the Defendants' acts are that Plaintiffs' suffered severe and permanent injuries of a physical and psychological nature. They were forced to endure pain and suffering to their detriment.

WHEREFORE, Plaintiff demands judgment against Defendants, and each of them, on all of the foregoing causes of action, in the form of compensatory damages for their pain and suffering, loss of enjoyment of life, and economic loss, in an amount that exceeds the jurisdictional limits of all lower courts that otherwise would have jurisdiction in the matter, and Plaintiff further demands punitive damages on all causes of action, in an amount to be determined by the trier of fact, together with attorney's fees, and together with costs and disbursements.

Dated: New York, New York
December 6, 2018

**LAW OFFICE OF
ANDREW C. LAUFER, PLLC**



By: Andrew C. Laufer, Esq.,
Attorney for Plaintiffs
255 W 36th Street, Suite 1104
New York, New York 10018
(212)422-1020

SUPREME COURT OF THE STATE OF NEW YORK
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MAURICE PHILLIPS,

Plaintiff(s),

VERIFICATION

-against-

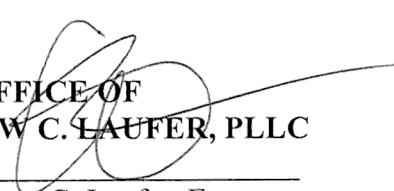
THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER MIGUEL VANBRAKLE
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Defendant(s),
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ANDREW C. LAUFER, an attorney duly admitted to practice law in the Courts of New York, affirms the following to be true:

1. That I am a principal of the Law Office of Andrew C. Laufer, PLLC, attorney for the Plaintiff in the within action. That I have read the foregoing complaint and know the contents thereof, and that the same are true to my knowledge, except as to the matters herein stated to be alleged upon information and belief, and that as to these matters I believe them to be true.
2. That the sources of my information and knowledge are records and investigation reports maintained within the file.
3. That the reason this verification is made by the affirmant and not by the Plaintiff is that the Plaintiffs do not reside in the County of New York, which is the county wherein this firm maintains its office.

Dated: New York, New York
December 6, 2018


**LAW OFFICE OF
ANDREW C. LAUFER, PLLC**

By: Andrew C. Laufer, Esq.,
Attorney for Plaintiffs
255 W 36th Street, Suite 1104
New York, New York 10018
(212)422-1020

SUPREME COURT STATE OF NEW YORK
COUNTY OF KINGS

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Plaintiff,

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THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER MIGUEL VANBRAKLE
SHIELD #28743 OF THE 67th PRECINCT AND JOHN
AND JANE DOE POLICE OFFICERS OF THE 67th PRECINCT,

Defendants,

SUMMONS AND COMPLAINT

LAW OFFICE OF ANDREW C. LAUFER

Attorney(s) for Plaintiff

Office and Post Office Address
255 W. 36th Street, Suite 1104
New York, NY 10018

Tel: (212) 422 1020
Fax: (212) 422 1069

To:

Signature (Rule 130-1.1-a)

Print name beneath

Service of a copy of the within is hereby admitted.

Dated:

Attorney(s) for:

PLEASE TAKE NOTICE:☐ **NOTICE OF ENTRY**

that the within is a (certified) true copy of a
duly entered in the office of the clerk of the within named court on

☐ **NOTICE OF SETTLEMENT**

that an order of which the within is a true copy
will be presented for settlement to the HON one of the judges of the
within named Court at

on at M.

Dated,

Yours, etc.

Law Office of Andrew C. Laufer